

Chapter 215

BOARDS, COMMISSIONS AND COMMITTEES

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[HISTORY: Adopted by the County Council of the County of Allegheny as indicated in article histories. Amendments noted where applicable.]

ALLEGHENY COUNTY CODE

ADMINISTRATIVE CODE REFERENCES

Grounds, properties and buildings — See Art. 701.

Public works contracts — See Art. 913.

ARTICLE I

Vacant Property Review Committee¹
[Adopted 7-5-2000 by Ord. No. 17-00²]**§ 215-1. Membership.**

The members of the County's Vacant Property Review Committee shall be appointed as follows:

- A. One member appointed by the Allegheny County Executive;
- B. One member of County Council appointed by said body;
- C. One member of the Allegheny County Department of Economic Development's Housing Division, appointed by the Director of the Allegheny County Department of Economic Development;
- D. One member of the Allegheny County Department of Economic Development's Planning Division appointed by the Director of the Allegheny County Department of Economic Development;
- E. One member appointed by the Redevelopment Authority of Allegheny County Board;
- F. One member appointed by the Pennsylvania Department of Community and Economic Development; and
- G. One member appointed by the Allegheny County Health Department, through its Director.

1. Editor's Note: For additional information regarding certain County agencies, see Administrative Code Art. 215.

2. Editor's Note: This ordinance amended an ordinance adopted 9-23-1993.

ARTICLE II

Parks and Recreation Commission³
[Adopted 10-22-2002 by Ord. No. 53-02]**§ 215-2. Creation of Commission.**

There is hereby created an advisory commission to be known and designated as the "Parks and Recreation Commission of Allegheny County, Pennsylvania." The Commission shall be a County agency as defined in the Administrative Code, and shall be subject to all provisions within the Administrative Code relating to agencies.

§ 215-3. Definitions.

Unless a different meaning clearly appears from the context, the following terms, as used in this article shall be defined as follows:

COMMISSION — The Parks and Recreation Commission.

DEPARTMENT — The Department of Parks and Recreation.

DIRECTOR — The Director of Parks and Recreation.

FISCAL YEAR — Begins on the first day of January and ends on the last day of December of each year, unless changed by ordinance.

MEMBERS — The members of the Parks and Recreation Commission.

§ 215-4. Membership; terms of office.

- A. The Commission shall be comprised of seven members appointed by the County Executive and shall be subject to confirmation by County Council. Vacancies shall be filled in the same manner for an unexpired term.
- B. Commission members shall include, to the extent possible, representation from the labor, the disability community, education, environmental advocates, sports and athletic programs, landscape architecture and historic preservation. Consideration shall also be given to geographic diversity among commission members.
- C. The members of the Commission must reside in the County at the time of their appointment and must maintain residence within the County at all times during their service on the Commission.
- D. The terms of office shall be four years for each member of the Commission. Members may be reappointed after their initial term. The terms of the members shall be staggered with three of the seven members serving an initial two-year term. Those three members serving an initial two-year term shall be determined by the Chief Executive when appointment is made.
- E. The terms of office shall begin with the confirmation by County Council of the seventh member. The terms shall terminate at the end of the fiscal year or when member's successors are appointed and qualified.
- F. The members of the Commission shall receive no compensation for the performance of their official

3. **Editor's Note:** For additional information regarding County grounds, properties and buildings, see Administrative Code Art. 701. For additional information regarding public works contracts, see Administrative Code Art. 913.

duties.

G. Members of the Commission may be removed by the Chief Executive at will.

§ 215-5. Election of officers.

- A. The Commission shall have at least two officers, Chair and Vice Chair.
- B. All officers shall be elected by the members for a term of one year and no officer shall serve more than two successive terms in that office.
- C. The officers of the Commission shall perform such duties as are customarily assigned to such officers.

§ 215-6. Responsibilities. [Amended 11-20-2007 by Ord. No. 52-07]

The Commission shall have the following powers and duties pertaining to all County parks, with the exception of the proposed Allegheny County Countywide Riverfront Park:

- A. Enhance citizen involvement in policymaking issues by advising the Director of Parks and Recreation regarding the budget, fees and charges, personnel recruitment and training, and general operating responsibilities.
- B. Conduct periodic public meetings to report to the community and to receive input on various issues from the citizens.
- C. Recommend to the County Executive and the County Council plans for development, beautification and maintenance of public parks and recreational areas, including parks, recreation facilities, playgrounds, aquatic areas, trails, greenways, bridges and open space.
- D. Investigate and recommend to the County Executive and the County Council the acquisition or abandonment of lands, lakes, waterways, trails, utility rights-of-way, greenways, buildings or other facilities for parks and recreation purposes.
- E. Work with public- and private-sector partners to connect County parks to the system of greenways and open space; and with local municipalities to preserve valuable open space lands adjacent to County parks.
- F. Review and recommend to the Director plans for the construction or improvement of buildings or other facilities to be used for parks, recreation and open space purposes.
- G. Recommend fees and charges for parks and recreation services to the Director for consideration. Such fees and charges will be subject to the review and consent of County Council.
- H. Perform such other duties relating to parks and recreation areas and facilities as may be required or suggested by the Chief Executive or County Council.

§ 215-7. Commission meetings.

- A. Regular meetings of the Commission shall be held, at a minimum, four times a year at a time and place to be determined by the Commission. Meetings shall be open to the public and shall be held within Allegheny County.
- B. Notice of the meeting and its agenda shall be given to the public prior to meeting. The Commission will set the meeting agenda.

- C. A majority of all the members of the Commission shall constitute a quorum for the transaction of business. A motion shall carry upon the affirmative vote of the majority of the members present at any meeting.
- D. Minutes of each meeting shall be kept and filed with the County Clerk and copies sent to the County Executive and County Council.
- E. The Commission may promulgate such rules and regulations for its conduct, as it deems necessary. Robert's Rules of Order shall prevail in matters which are not addressed in such rules and regulations or until such rules and regulations are implemented.

§ 215-8. Annual report.

- A. The Commission shall present an annual written report of its activities for the past fiscal year to the County Executive and County Council. The Commission may also make appropriate recommendations as part of that report.
- B. The report shall include the following items:
 - (1) Name of Commission;
 - (2) Its objectives and functions;
 - (3) A reference to all reports and communications presented to County Council;
 - (4) The number of meetings held;
 - (5) Attendance records of all members;
 - (6) The number of public hearings conducted;
 - (7) The amount of money, if any, expended in support of the Commission;
 - (8) A list of County personnel that regularly assist the Commission.

ARTICLE III

Friends of the Parks**[Adopted 6-22-2021 by Ord. No. 11-21⁴]****§ 215-9. Creation.**

There is hereby created advisory entities, known as "Friends of the Park," in each of the County parks: Boyce Park, Deer Lakes Park, Harrison Hills Park, Hartwood Acres Park, North Park, Round Hill Park, Settler's Cabin Park, South Park and White Oak Park. Each Friends of the Park entity shall be designated as the Friends of the Park for the respective park. All individuals appointed to any Friends of the Park shall be deemed covered persons, as defined in § 1013.03 of the Administrative Code of Allegheny County, for the purposes of the County Ethics Code, and shall be subject to the entirety of the Article 1013 of the Administrative Code of Allegheny County⁵ throughout their term of service.

§ 215-10. Definitions.

Unless a different meaning clearly appears from the context, the following terms, as used in this article, shall be defined as follows:

COUNCIL — Allegheny County Council.

DEPARTMENT — The Allegheny County Parks Department.

DIRECTOR — The Director of the Allegheny County Parks Department.

FOUNDATION — The Allegheny County Parks Foundation.

FRIENDS OF THE PARK — Any of the nine Friends of the Park entities created pursuant to the terms of this article.

MEMBERS — The appointees of County Council to the Friends of the Parks.

§ 215-11. Membership; terms of office.

- A. Nominations and appointments to each Friends of the Park shall be made as provided in Subsection B(2). Vacancies shall be filled in the same manner.
- B. Nominations to the Friends of the Park shall be made and approved as follows:
 - (1) County Council members shall be entitled to nominate individuals to serve on the Friends of the Parks, subject to the terms contained herein.
 - (2) Once presented to the Council in the form prescribed for other nominations, all Friends of the Parks nominations shall be referred to the Committee on Appointment Review. No nomination shall be deemed approved unless such approval is by a majority of the seated Council members at a regular meeting of the full Council following the Committee on Appointment Review's deliberation and recommendation. The Committee on Appointment Review shall not take action on any nomination prior to being provided with a resume, curriculum vitae, or other written summary of the nominee's background and qualifications. Notwithstanding any Rule of Council to the contrary, no nomination made pursuant to the terms of this article shall be deemed approved automatically or via any procedure other than an affirmative vote of a majority of the

4. Editor's Note: This ordinance also repealed former Art. III, Council of Friends, adopted 10-22-2002 by Ord. No. 54-02, as amended.

5. Editor's Note: See Ch. 5, Administrative Code, Art. 1013.

seated Council members as provided in this subsection.

- (3) The following conditions shall apply at all times and to all nominations and appointments:
- (a) No individual Friends of the Park shall have more than 12 members seated at any time.
 - (b) For any park located entirely within one Council district, the Council member in whose district the park is located may nominate no more than seven individuals for Friends of the Park for that park. The remaining five seats for that park may be filled via nomination by the other individual Council members.
 - (c) For any park located within multiple Council districts, the County Council member in whose district the larger portion of the park (as determined by surface area) is located may nominate no more than six individuals for Friends of the Park for that park, and the County Council member in whose district the smaller portion of the park is located may nominate no more than four individuals for that park. The remaining two seats may be filled via nomination by the other individual Council members.
 - (d) Any member of Council without nominations to a specific Friends of the Park reserved under the terms of Subsection B(3)(b) or (c) may nominate no more than two individuals to serve in any seat(s) on any Friends of the Park not expressly reserved to other Council members, provided that such nomination, if approved, would not increase the membership of any Friends of the Park to greater than 12. No Council member making nominations under the terms of this subsection may nominate more than one individual to serve on the same Friends of the Park.
- (4) If, at any time, any seat on any Friends of the Park remains vacant for 90 days or more, any member of Council may nominate an individual to fill the vacant seat. Nominations made under the terms of this subsection shall not be counted toward the limitations on County Council members' nominations established in Subsection B(3)(b), (c), or (d). The nominating member of County Council shall be deemed the appointing County Council member solely for the purpose of removal of an appointment made under the terms of this subsection.
- C. The members of the Friends of the Park must reside in the County at the time of their appointment and must maintain residence within the County at all times during their service.
- D. The term of office shall be three years for each member of the Friends of the Park. No nomination of any individual to any Friends of the Park shall specify a term of longer than three years from the date of appointment. No individual shall serve as a member of a Friends of the Park beyond the expiration of the term for which they were appointed. Friends of the Park members may be reappointed after the expiration of any term, subject to the limitation contained within § 215-14.2B, but nothing contained within this article shall be read, interpreted, or otherwise deemed to establish a right to reappointment for any Friends of the Park member(s).
- E. The members of the Friends of the Park shall receive no compensation for the performance of their official duties.
- F. The members of the Friends of the Park shall include, to the extent possible, representation from the labor, the disability community, education, environmental advocates, sports and athletic programs landscape architecture and historic preservation. Consideration shall also be given to diversity among members.
- G. Members of the Friends of the Park may be removed by the nominating County Council member at

their discretion, or by the full Council upon approval of a motion to remove by a majority of the seated members, or in accordance with the provisions of § 215-14.2. Removal undertaken pursuant to the terms of this article shall be entirely at will.

§ 215-12. Election of officers.

- A. Each Friends of the Park shall have at least two officers, Chair and Vice Chair.
- B. All officers shall be elected by the members for a term of three years, and no officer shall serve more than two successive terms in that office.
- C. The officers of the Friends of the Park shall perform such duties consistent with the provisions of Robert's Rules of Order relating to such officers.
- D. Prior to convening any meeting at which a Chair will be elected by the members of a Friends of the Park, a temporary presiding officer shall be chosen from among all of the members of such Friends of the Park by lot. Such temporary presiding officer shall convene and conduct the meeting until a Chair is elected, the meeting recesses, or the meeting adjourns, whichever event takes place first in time. For any subsequent meetings held to elect a Chair, a new temporary presiding officer shall be chosen by lot and shall serve in accordance with the provisions of this subsection.

§ 215-13. Function and duties of the Friends of the Park.

- A. At all times, each Friends of the Park and all Friends of the Park members shall work cooperatively with the Council member(s) representing the district(s) in which the park is located to address issues of concern or interest.
- B. Each Friends of the Park shall receive and gather information relating to the respective County parks from County residents and park users, and shall provide such information to Council and the Director as appropriate for the issue(s) involved. Information may be gathered by the Friends of the Park through periodic public meetings held in accordance with the provisions of § 215-14 of this article in order to disseminate information relating to the parks and to receive input on park-related issues.
- C. Subject to coordination and authorization by the Allegheny County Park Rangers (or successor entity), the Friends of the Park may conduct periodic public volunteer projects, subject to any existing County rules, regulations, or guidelines relating to volunteer projects by groups within the County Parks.
- D. No later than January 31 of each calendar year, each Friends of the Parks shall provide an annual summary of their activities for the prior year to the Allegheny County Council Chair of the Parks Committee (or, in the absence of such committee, the Council President), the Council member(s) representing the municipalities in which the park is located, and the Parks Director.
- E. Nothing contained within this article shall be read, interpreted, or otherwise deemed to empower the Friends of the Park to undertake fundraising activities on behalf of Allegheny County, and under no circumstances shall any Friends of the Park or individual(s) appointed thereto do so. The Friends of the Parks may, however, raise funds on their own behalf for contribution to Allegheny County for use within the County Parks, subject to the following:
 - (1) The Friends of the Park are not empowered to seek tax exempt status.
 - (2) The Friends of the Park shall not raise funds for any specific improvement, unless such improvement has already been authorized by the County.

- (3) The Friends of the Park may only raise funds through special events, rather than by placing donation boxes or similar activities geared toward continuous fundraising. If alcoholic beverages are to be served at any fundraising event, the Friends of the Park sponsoring the event must ensure that the appropriate licenses and permits are in place, that all applicable taxes (including the Allegheny County drink tax) are paid, that all required insurance is obtained, and that the event comports to all applicable federal, state and local laws. Alcoholic beverages shall not be served at events sponsored by any Friends of the Park on County-owned property.
 - (4) The Friends of the Park shall not operate any small game of chance other than raffles and/or 50/50 drawings on County-owned property, regardless of whether such operation is licensed by the Commonwealth of Pennsylvania or any other licensing agency. The Friends of the Park shall be required to comply with all licensing and other requirements in order to operate any small game of chance pursuant to the terms of this subsection.
 - (5) The Friends of the Park must clearly disclose to all participants and attendees that any fundraising activities are undertaken by the Friends of the Park, and not by Allegheny County or the Allegheny County Parks Foundation.
 - (6) All funds raised at Friends of the Park sponsored fundraising events must be deposited into a bank account established specifically for the purpose by that Friends of the Park. Checks drawn on any account containing funds raised by a Friends of the Park must be signed by at least two members of the appropriate Friends of the Park. All Friends of the Park must, no later than January 31 of each year, provide to the Allegheny County Council Chair of the Parks Committee (or, in the absence of such committee, the Council President) and the Council member(s) representing the municipalities in which the park is located a report of all funds raised in the prior calendar year, together with clear descriptions of all purposes for which any and all raised funds have been expended in the prior calendar year. Such annual report shall also include a delineation of all fundraising events conducted in the previous calendar year by the Friends of the Park, copies of all monthly or other bank statements for any account existing in the name of the Friends of the Park in question or into which or from which such Friends of the Park deposited or withdrew any funds, and supporting documentation for all expended funds in the form of receipts, cancelled checks, or written verification of the expended funds signed by both the Chair and Vice Chair of the Friends of the Park in question.
 - (7) The Friends of the Park shall be responsible for the payment of any and all taxes, fees, and other expenses that result from their fundraising activities.
 - (8) The Friends of the Park that conduct fundraising activities shall permit unrestricted access to their financial records by the Allegheny County Controller upon request.
 - (9) Any Friends of the Park shall immediately terminate any fundraising activity upon request by the Allegheny County Council Committee on Parks or the Director.
- F. Friends of the Parks are strictly advisory committees, and neither the Friends of the Parks nor any of their members shall unilaterally assume any power, duty, or authority apart from those expressly provided in the terms of this article. Under no circumstances shall any Friends of the Park or any member(s) thereof issue supervisory directives to any County employee or contractor.
- G. Under no circumstances shall any Friends of the Park or member thereof hold itself or themselves out to the public as a representative of Allegheny County. No Friends of the Park may use the County seal, letterhead, or any other identification suggesting that the Friends of the Park or any of its appointed members are acting as agents of Allegheny County, Allegheny County Council, any

independently elected Allegheny County official, or any Allegheny County department, office, bureau, employee, contractor, or other County agency.

§ 215-14. Meetings.

- A. Public meetings of the Friends of the Park shall be held not less than twice a year at times and places to be determined by each respective Friends of the Park Chair. Meetings shall be open to the public and shall be held within Allegheny County.
- B. Notice of each meeting and its agenda shall be provided to the public at least 72 hours prior to the scheduled start time of such meeting, via prominent posting at the location at which the meeting will take place and/or via posting to the Friends of the Park's social media account(s) [provided that the Friends of the Park in question has opted to create any social media account(s) in accordance with the provisions of § 215-14.1]. Notice shall also be communicated to the County Council member(s) representing the municipalities in which the park is located and the Director via email at least 72 hours prior to the meeting. The agenda items shall be at the discretion of the Friends of the Park Chair or designee.
- C. A majority of the seated members of a Friends of the Park shall constitute a quorum for the transaction of business at any meeting. Under no circumstances shall any Friends of the Park meeting or portion thereof take place in the absence of a quorum. A motion shall carry upon the affirmative vote of the majority of the members present at any meeting.
- D. Approved minutes/summary of each meeting shall be provided to and retained by Chief Clerk for County Council within two weeks of approval, who shall, in turn, provide copies to the Director and County Council.
- E. Robert's Rules of Order shall prevail at all Council of Friends meetings. This requirement may be waived by majority vote.

§ 215-14.1. Social media.

- A. Subject to the limitations contained herein, the Friends of the Parks may, by majority vote of their seated members, authorize the creation of one or more social media accounts for their own use. Each account created shall be subject to a separate vote, and under no circumstances shall any Friends of the Park have more than one account on any social media platform. Posts to such social media account shall be at the discretion of the Chair or their designated Friends of the Park member, and must comply with all in force Allegheny County and Council social media policies.
- B. Primary administrative access to any social media account(s) created pursuant to the terms of this section shall be given to the Chair of the Parks Committee and/or their designee(s). Under no circumstances shall any Council member or Council staff member post, remove, edit, redact, or otherwise alter the content of any material posted by a Friends of the Park in accordance with the provisions of this section.
- C. No Friends of the Park member may, at any time, establish an individual or other social media account purporting to represent any Friends of the Park or its members, and no Friends of the Park member may post any content to any social media account or other public forum in which they purport to speak on behalf of any Friends of the Park, Allegheny County, the Allegheny County Parks Foundation, or any County department, agency, employee, or contractor.

§ 215-14.2. Annual review.

- A. The Allegheny County Council Committee on Parks shall meet at least once each calendar year as soon as is practicable after receipt of the reporting required under the terms of §§ 215-13D. and E(6), and at such other times as designated by its Chair or required under the terms of this section, solely to review the function of the nine Friends of the Parks Committees and the compliance of those committees and their members with the provisions of this chapter. In the course of such review, if the Committee on Parks determines that any Friends of the Parks or member thereof is ineffective in undertaking the functions/duties or that a committee or member thereof is in violation of any provisions of this chapter, the Allegheny County Parks Committee may, via motion approved by its members:
- (1) Determine that additional information must be gathered prior to reaching a decision, with additional review to be undertaken by the Committee within 90 days of the determination; or
 - (2) Censure the member(s) of a Friends of the Parks Committee responsible for the dereliction or violation, with at least one further performance review to be undertaken within 90 days of the censure; or
 - (3) Declare the term of any member(s) of a Friends Group responsible for the dereliction or violation immediately terminated; or
 - (4) Determine that no additional action is required.
- B. In the event of termination of any member(s) terms pursuant to the provisions of Subsection A(3), such member(s) shall not be eligible for appointment or reappointment for any subsequent term(s) on any Friends of the Park. Appointment of successors to members removed pursuant to the terms of Subsection A(3) shall otherwise be undertaken in accordance with the provisions of § 215-11.

ARTICLE IV

Countywide Riverfront Park Commission**[Adopted 11-20-2007 by Ord. No. 52-07]****§ 215-15. Creation of Commission.**

There is hereby established a five-member Allegheny County Countywide Riverfront Park Commission. The Commission generally shall be empowered to assist in the implementation of land acquisition and development plans, as well as to control revenues appropriated by Allegheny County Council for the Commission's use in acquiring or improving land for a Countywide Riverfront Park.

§ 215-16. Membership; terms of office.

- A. The President of Allegheny County Council shall appoint each of the five regular members of the Riverfront Park Commission no later than February 15, 2008. The caucus of the party occupying the majority of the seats on Council shall approve three of the Commission members, while the caucus of the party occupying the minority of the seats on Council shall approve two of the Commission members. The President of Council shall designate a Chair and Vice Chair of the Commission after the fifth appointment is approved. The terms of office shall begin with the appointment of the fifth regular member, and all regular members shall serve terms of four years. Any regular member may be removed by the President of Allegheny County Council at will.
- B. The Allegheny County Chief Executive shall sit on the Countywide Riverfront Park Commission as a nonvoting ex officio member.

§ 215-17. Member qualifications.

Members of the Countywide Riverfront Park Commission shall be residents of the County at the time of appointment and throughout their service. No more than one regular member of the panel may be a County officer or employee at the time of appointment. Members of the Commission shall receive no compensation for the performance of their duties.

§ 215-18. Quorum, minutes and records; administrative support.

Four regular members of the Commission shall constitute a quorum for the transaction of business. The Commission shall conduct no business except in the presence of a quorum. The Chairman of the Commission shall ensure that appropriate measures are taken to keep minutes of the Commission's proceedings. Such records shall be kept and preserved in accordance with applicable law. The Council shall furnish to the Commission such clerical assistance and supplies as may be deemed reasonable by the President.

§ 215-19. Filling of vacancies.

In the case of a vacancy, the President of Allegheny County Council shall, within 30 days of the vacancy, make an appointment to fill the unexpired term.

§ 215-20. Commission meetings.

- A. Regular meetings of the Commission shall be held, at a minimum, four times a year at a time and place to be determined by the Commission. Meetings shall be open to the public and shall be held within Allegheny County.

- B. Notice of all meetings and agendas shall be made available to the public prior to the meeting date. The Commission will set the agenda.
- C. The Commission may promulgate such rules and regulations for its conduct as it deems necessary. Robert's Rules of Order shall prevail in matters which are not addressed in such rules and regulations, or until such rules and regulations are implemented.

§ 215-21. Powers and duties.

The Commission shall have the following powers and duties:

- A. Enhance citizen involvement in policymaking issues by advising the Director of Parks and Recreation regarding the budget, fees and charges, personnel recruitment and training, and general operation of the Allegheny Countywide Riverfront Park (the "Park").
- B. Subject to the terms of § 215-20, conduct periodic public meetings to report to the community and to receive input on various issues pertaining to the Park from citizens.
- C. Recommend to the County Executive and the County Council plans for beautification and maintenance of the Park and its recreational areas and amenities.
- D. Investigate the acquisition or abandonment of lands, lakes, waterways, trails, utility rights-of-way, greenways, buildings or other facilities for the purpose of constructing or improving the Park.
- E. Investigate, recommend and implement construction of the Park in such a manner so as to maximize its value and use to existing riverfront communities and, specifically, to enhance the quality of life and increase property values in existing riverfront communities.
- F. Work with public and private sector partners to connect the riverfront park to existing greenways and open space, and with local municipalities to preserve valuable open space lands adjacent to the Park.
- G. Review and recommend to the Director of Parks and Recreation plans for the construction or improvement of buildings or other facilities within the Park.
- H. Recommend fees and charges for Park services to the Director of Parks and Recreation for consideration, subject to the review and approval by Council and the Chief Executive.
- I. Assist the Law Department, the Parks Department and the Department of Economic Development in the implementation of land acquisition and development plans.
- J. Subject to the terms of §§ 215-22 and 215-23, authorize expenditures of County revenue appropriated by Council to the Commission for the purposes of land acquisition for or development of the Park.

§ 215-22. Initial study and subsequent activities.

- A. Subject to applicable law, including provisions of the Administrative Code of Allegheny County pertaining to the procurement process and securing professional services,⁶ the Commission shall select one or more entities to create a preliminary design for the proposed Countywide Riverfront Park, including linear pathways, bridge connections, and amenities. The entity or entities creating the preliminary design shall be selected no more than 180 days from the date of approval of a County budget in which sufficient funding for such preliminary design is appropriated for the Commission's

6. Editor's Note: For additional information regarding County procurement processes, see Charter Art. VIII, Competitive Procurement; and Administrative Code Part 9, Competitive Procurement and Contracting.

use. The preliminary design authorized by this subsection shall include, but not be limited to:

- (1) Proposed design standards for continuous and contiguous walkways, running paths and bikeways throughout the Park; and
- (2) Recommendations for amenity types, construction, and location; and
- (3) Proposed design standards for bridge connections and recommendations regarding which bridges within the County should serve as Riverfront Park connectors.

- B. The preliminary design authorized in Subsection A shall, upon completion, be presented to Council and the Chief Executive, together with recommendations for future appropriations for the development of the Riverfront Park. The Commission shall, no less than once each year thereafter, submit additional and/or amended recommendations for appropriations for the development of the Riverfront Park.
- C. In any fiscal year after the presentation of the preliminary design authorized in this section and in accordance with the terms of § 215-21K, the Commission may by majority vote authorize the expenditure of any revenues appropriated by Council for the Commission's use in acquiring property for or developing the Riverfront Park.
- D. For the purposes of this section, the term "amenity" shall be deemed to include any improvement to existing property within the boundaries of the Park, such as parks, parklets, playgrounds, fishing or boating facilities, park shelters or picnic groves, rowing facilities, equipment rental facilities and any other recreational facilities.

§ 215-23. Requirement of binding resolution for commitment of County funds.

The Countywide Riverfront Park Commission shall be required to obtain a binding resolution from the County of Allegheny authorizing the request, application, or acceptance of any state or federal funds requiring a County match from the operating or capital budgets of the County prior to any such request, application, or acceptance of funds.

§ 215-24. Audit requirement.

The Countywide Riverfront Park Commission shall be deemed subject to the audit requirements contained within § 5-205.02 of the Administrative Code of Allegheny County in any calendar year(s) in which County revenue was appropriated for its use.

§ 215-25. through § 215-29. (Reserved)

ARTICLE V

Human Relations Commission⁷**[Adopted 7-1-2009 by Ord. No. 26-09]****§ 215-30. Purpose.**

In order to assure that all persons regardless of race, color, religion, national origin, ancestry or place of birth, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, age or use of a guide or support animal because of blindness, deafness or physical disability enjoy the full benefits of citizenship and are afforded equal opportunities for employment, housing and use of public accommodation facilities, it is necessary that appropriate legislation be enacted.

§ 215-31. Definitions. [Amended 7-14-2020 by Ord. No. 17-20; 10-20-2020 by Ord. No. 24-20]

The following words, terms and phrases, when used in this article, shall be defined as follows, unless the context clearly indicates otherwise:

ACCESSIBLE — Being in compliance with the applicable standards set forth in the following:

- A. The Fair Housing Act (Public Law 90-284 as amended, 42 U.S.C. § 3601 et seq.).
- B. The Americans with Disabilities Act of 1990 (Public Law 101-336, 42 U.S.C. § 12101, et seq.).

AGE — Includes any person 40 years of age or older and shall also include any other person so protected by further amendment to the Federal Age Discrimination in Employment Act.

COMMERCIAL PROPERTY —

- A. Any building, structure or facility, or portion thereof, which is used, occupied or is intended, arranged or designed to be used or occupied for the purpose of operating a business, an office, a manufactory or any public accommodation; and
- B. Any vacant land offered for sale, lease or held for the purpose of constructing or locating thereon any such building, structure, facility, business concern or public accommodation.

COMMISSION — The Human Relations Commission of the County of Allegheny.

DISABILITY or HANDICAP (herein referred to as "disability") —

- A. With respect to a person means:
 - (1) Physical or mental impairment which substantially limits one or more of such person's major life activities;
 - (2) Record of such an impairment; or
 - (3) Regarded as having such an impairment, but such term does not include current, illegal use of or addiction to a controlled substance, as defined in Section 102 of the Controlled Substances Act (Public Law 91-513, 21 U.S.C. § 802).
- B. For employment, "disability" means a non-job-related disability which does not substantially interfere with the ability to perform the essential functions of the employment which a person with a disability

7. **Editor's Note: For additional prohibitions against discrimination in County operations see Administrative Code Parts 9, Competitive Procurement and Contracting, and 10, Personnel; and Arts. 1016, Gender and Race Equity Audit, and 1204, Diversity Review.**

applies for, is engaged in or has been engaged in. Uninsurability or increased cost of insurance under a group or employee insurance plan does not render a disability job-related.

DISCRIMINATION — Means any exclusion, denial, intimidation, coercion, difference or segregation in treatment as defined under the terms of this article, and shall include but not be limited to such treatment in hiring, referring for hire, promoting, training; in membership in employee or labor organizations, in the advertisement, sale, lease, rental, financing or zoning of housing; in rendering service in places of public accommodation; or for the purposes of providing medical care as defined herein because of protected class based upon race, color, religion, national origin or ancestry, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, hairstyle, age or use of a guide or support animal because of blindness, deafness or physical disability of any individual or independent contractor or because of the disability of an individual with whom the person is known to have an association.

EMPLOYEE — Does not include:

- A. Any individuals who, as a part of their employment, reside in the personal residence of the employer; or
- B. Any individual employed by said individual's parents, spouse or child;
- C. Those employed by religious, fraternal, charitable or sectarian corporations or associations in the direct provision of services of the organization wherein membership is a bona fide occupational qualification, except such corporations or associations supported, in whole or in part, by County appropriations.

EMPLOYER — Any person who employs four or more employees, exclusive of the parents, spouse or children of such person, including the County of Allegheny, its departments, boards, commissions and authorities, any other governmental agency within its jurisdiction, but excluding any religious, fraternal, charitable or sectarian organization.

EMPLOYMENT AGENCY — Includes any person regularly undertaking, with or without compensation, to procure opportunities to work or to procure, recruit, refer or place employees.

FAIR HOUSING ACT — Public Law 90-284, 42 U.S.C. § 3601 et seq.

FAMILIAL STATUS — One or more individuals who have not attained the age of 18 years being domiciled with: (1) a parent or other person having legal custody of such individual or individuals; or (2) the designee of such parent or other person having such custody, with the written permission of such parent or other person. The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.

GENDER IDENTITY OR EXPRESSION — Self-perception, or perception by others whether accurate or not, as male or female, including a person's appearance, behavior, or physical characteristics, that may be in accord with, or opposed to, one's physical anatomy, chromosomal sex, or sex assigned at birth.

HAIRSTYLE — Means any characteristic, texture, form, or manner of wearing an individual's hair if such characteristic, texture, form or manner is commonly associated with a particular race, national origin, gender, gender identity or expression, sexual orientation, or religion.

HOUSING ACCOMMODATIONS — Include: (1) any building, structure, mobile home site or facility, or portion thereof, which is used or occupied or is intended, arranged or designed to be used or occupied as the home residence or sleeping place of one or more individuals, groups or families whether or not living independently of each other; and (2) any vacant land offered for sale, lease or held for the purpose of constructing or locating thereon any such building, structure, mobile home site or facility. The term

"housing accommodation" shall not include any personal residence offered for rent by the owner thereof.

HOUSING FOR OLDER PERSONS —

A. Housing:

- (1) Provided under any state or federal program that the Secretary of Housing and Urban Development determines is specifically designed and operated to assist elderly persons as defined in the state or federal program; or
- (2) That is intended for, and solely occupied by, persons 62 years of age or older; or
- (3) That is intended and operated for occupancy by at least one person 55 years of age or older per unit.

B. In determining whether housing qualifies as housing for older persons under the terms of this article, the Commission's requirements shall include but not be limited to the following:

- (1) That at least 80% of the units are occupied by at least one person 55 years of age or older per unit; and
- (2) The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older.

C. Housing shall not fail to meet the requirements for housing for older persons by reason of unoccupied units, provided that such units are reserved for occupancy by persons who meet the age requirements of this article.

INDEPENDENT CONTRACTOR — Includes any person who is subject to the provisions governing any of the professions and occupations regulated by state licensing laws enforced by the Bureau of Professional and Occupational Affairs in the Department of State, or is included in the Fair Housing Act (Public Law 90-284, as amended, 42 U.S.C. § 3601 et seq.).

LABOR ORGANIZATION — Includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment or of other mutual aid or protection in relation to employment.

LENDING INSTITUTION — Any bank, insurance company, savings and loan association or any other person or organization regularly engaged in the business of lending money or guaranteeing loans.

MEDICAL CARE — Means any care provided by an individual who is licensed, certified or registered under the laws of the Commonwealth of Pennsylvania to provide, to an individual or a group, health services, including but not limited to, treatment of physical illness or injury, rehabilitation from illness or physical injury, palliative care, nursing home or other long-term care, or the assessment or improvement of physical, mental, emotional, psychiatric, psychological, or psychosocial adjustment or functioning, regardless of whether there is a diagnosable, pre-existing disorder or disease.

MEDICAL CARE PROVIDER — Means any individual, group, practice, or other entity that provides Medical Care as defined in Subsection AA. The term shall include, but not be limited to, physicians, physician assistants, nurse practitioners, psychologists, marriage and family therapists, licensed clinical social workers, professional clinical counselors, behavioral clinicians or therapists, nurses, or any other persons offering or participating in the provision of Medical Care as defined herein as a profession.

OWNER — Includes a lessee, sublessee, assignee, manager, agent, or any other person having the right of ownership or possession or the authority to sell, rent or lease any housing accommodation, including the County and its departments, authorities, boards and commissions.

PENNSYLVANIA HUMAN RELATIONS ACT — Public Law 744, No. 322, as amended.⁸

PERSON — Includes one or more individuals, partnerships, associations, organizations, corporations, legal representatives, trustees in bankruptcy or receivers. It also includes, but is not limited to, any owner, lessor, assignor, builder, manager, broker, salesman, agent, employee, independent contractor, lending institution and all authorities, boards and commissions thereof.

PERSONAL RESIDENCE — A building or structure containing living quarters occupied or intended to be occupied by no more than two individuals, two groups or two families living independently of each other and used by the owner thereof as a bona fide residence for himself and any members of his family forming his household.

PROTECTED CLASS — Means any categorization, classification, or other grouping of one or more person(s) legally protected from discrimination pursuant to the terms of this article under the terms of this article based upon race, color, religion, national origin, ancestry or place of birth, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, hairstyle, age or use of a guide or support animal because of blindness, deafness or physical disability of any individual or independent contractor, or because of the disability of an individual with whom the person is known to have an association.

PUBLIC ACCOMMODATION, RESORT OR AMUSEMENT — Any place which is open to, accepts or solicits the patronage of the general public or offers goods or services to the general public, including loans, or is listed in the Pennsylvania Human Relations Act, Section 4,⁹ but shall not include any personal or professional services which are in their nature distinctly private, personal or confidential.

PUBLIC EDUCATION — Means education provided to students at any primary, secondary, trade, technical, or other school or other facility that is funded primarily by real estate taxes levied upon residents of a school district located in whole or in part within Allegheny County, or by taxes levied by Allegheny County or any municipality located in whole or in part within Allegheny County. For the purposes of this article, the term shall not include education provided at any private, parochial, or other school or facility that is funded primarily by tuitions, endowments, or any other privately raised source(s) of funding, nor shall it include any college, university, or other entity solely providing post-secondary education.

REAL-ESTATE-RELATED TRANSACTION — Any of the following:

- A. The making or purchasing of loans or providing other financial assistance for purchasing, constructing, improving, repairing or maintaining a housing accommodation or commercial property; or
- B. The purchasing, constructing, improving, repairing or maintaining a housing accommodation or commercial property; or
- C. The selling, brokering, using as collateral or appraising of real property.

SEX — Male or female, and includes the gender of a person, as perceived, presumed or assumed by others.

SEXUAL ORIENTATION — Male or female homosexuality, heterosexuality and bisexuality, by preference, practice or as perceived by others, whether or not such perception is accurate.

§ 215-32. Unlawful employment practices. [Amended 10-20-2020 by Ord. No. 24-20]

- A. It shall be an unlawful employment practice for an employer to discriminate against any individual

8. Editor's Note: See 43 P.S. § 451 et seq.

9. Editor's Note: See 43 P.S. § 954.

with respect to his or her compensation, terms, conditions or privileges of employment because of the individual's race, color, religion, national origin, ancestry or place of birth, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, hairstyle, age or use of a guide or support animal because of blindness, deafness or physical disability of any individual or independent contractor or because of the disability of an individual with whom the person is known to have an association.

B. It shall further be unlawful:

- (1) For any employer to refuse to hire or employ or contract with, or to bar or to discharge from employment such individual or independent contractor, or to otherwise discriminate against such individual or independent contractor with respect to compensation, hire, tenure, terms, conditions or privileges of employment or contract.
 - (a) The provisions of this subsection shall not apply to operation of the terms or conditions of any bona fide retirement or pension plan which have the effect of a minimum service requirement, or age limitations placed upon entry into bona fide apprenticeship programs of two years or more approved by the State Apprenticeship and Training Council of the Department of Labor and Industry.
 - (b) Notwithstanding any provision of this section, it shall not be an unlawful employment practice for a religious corporation or association to hire or employ on the basis of sex in those certain instances where sex is a bona fide occupational qualification because of the religious beliefs, practices, or observances of the corporation, or association.
- (2) For any employer, employment agency, or labor organization, prior to the employment, contracting with an independent contractor or admission to membership, to:
 - (a) Require an applicant to provide information concerning his or her membership in a protected class. An employer may inquire as to the individual's ability to perform the essential functions of the employment.
 - (b) Print or publish or cause to be printed or published any notice or advertisement relating to employment or membership indicating any preference, limitation, specification or discrimination based upon protected class.
 - (c) Deny or limit, through a quota system, employment or membership because of protected class.
 - (d) Substantially confine or limit recruitment or hiring of individuals, with intent to circumvent the spirit and purpose of this article, to any employment agency, employment service, labor organization, training school or training center or any other employee-referring source which services individuals who are predominantly of the same protected class.
 - (e) Deny employment because of a prior disability.
 - (f) Exclude or otherwise deny equal jobs or benefits to a person because of the disability of an individual with whom the person is known to have a relationship or association.
- (3) For any labor organization, because of protected class, to deny full and equal membership rights to any individual or otherwise to discriminate against such individuals with respect to hire, tenure, terms, conditions or privileges of employment or any other matter, directly or indirectly,

related to employment.

- (4) For any person, employer, employment agency, or labor organization to discriminate in any manner against any individual because such individual has opposed any practice forbidden by this article, or because such individual has made a charge, testified or assisted, in any manner, in any investigation, proceeding or hearing under this article; or to aid, abet, incite, compel or coerce the doing of any act declared by this section to be an unlawful discriminatory practice, or to obstruct or prevent any person from complying with the provisions of this article or any order issued thereunder, or to attempt, directly or indirectly, to commit any act declared by this section to be an unlawful discriminatory practice.
- (5) For any employment agency to fail or refuse to classify properly, refer for employment or otherwise to discriminate against any individual because of protected class.
- C. This section shall not be construed to prohibit the refusal to hire or the dismissal of a person who is not able to function properly in the job applied for or engaged in.
- D. Nothing contained within this article shall be construed to bar any institution or organization for persons with disabilities from limiting or giving preference in employment or membership to disabled persons.

§ 215-33. Unlawful housing practices.

It shall be an unlawful housing practice for any person to:

- A. Because of race, color, religion, national origin, ancestry or place of birth, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, age or use of a guide or support animal because of blindness or because the user is a handler or trainer of support or guide animals, deafness or physical disability of any individual or independent contractor or because of the disability of an individual with whom the person is known to have an association:
 - (1) Refuse to sell, lease, finance or otherwise to deny or withhold any housing accommodation or commercial property because of protected class from any person, prospective owner, occupant or user of such housing accommodation or commercial property.
 - (2) Evict or attempt to evict an occupant of any housing accommodation before the end of the term of a lease because of pregnancy or the birth of a child.
- B. Refuse to lend money, whether or not secured by mortgage or otherwise for the acquisition, construction, rehabilitation, repair or maintenance of any housing accommodation or commercial property or otherwise withhold financing of any housing accommodation or commercial property from any person because of protected class.
- C. Discriminate against any person in the terms or conditions of selling or leasing any housing accommodation or commercial property or in furnishing facilities, services or privileges in connection with the ownership, occupancy or use of any housing accommodation or commercial property because of protected class.
- D. Refuse to permit, at the expense of a person with a disability, reasonable modifications of existing premises occupied or to be occupied by such person if such modification may be necessary to afford such person full enjoyment of the premises, except that, in the case of a rental the landlord may, where it is reasonable to do so, grant permission for a modification if the renter agrees to restore the interior of the premises to the condition that existed before the modification, with reasonable wear

and tear excepted.

- E. Refuse to make reasonable accommodations in rules, policies, practices or services when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a housing accommodation.
- F. Discriminate against any person in the terms or conditions of any loan of money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair or maintenance of housing accommodation or commercial property because of protected class.
- G. Print, publish, circulate or cause to be made any statement or advertisement relating to the sale, lease or acquisition of any housing accommodation or commercial property or the loan of money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair or maintenance of any housing accommodation or commercial property which indicates any preference, limitation, specification, or discrimination based upon protected class.
- H. Require information concerning an individual's protected class in connection with the sale or lease of any housing accommodation or commercial property or loan of any money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair or maintenance of any housing combination or commercial property.
- I. Construct, operate, offer for sale, lease or rent or otherwise make available housing or commercial property which is not accessible.

§ 215-34. Unlawful real estate practices. [Amended 10-20-2020 by Ord. No. 24-20]

A. It shall be an unlawful real estate practice:

- (1) To deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings or commercial property, or to discriminate against him or her in the terms or condition of such access, membership, or participation, on account of protected class.
- (2) For any person or other entity whose business includes engaging in real-estate-related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of protected class.
- (3) To induce, solicit or attempt to induce or solicit for commercial profit any listing, sale or transaction involving any housing accommodation or commercial property by representing that such housing accommodation or commercial property is within any neighborhood, community or area adjacent to any other area in which there reside, or do not reside, persons of any particular protected class.
- (4) To discourage, or attempt to discourage, the purchase or lease of any housing accommodation or commercial property by representing that such housing accommodation or commercial property is within any neighborhood, community or area adjacent to any other area in which there reside, or may in the future reside in increased or decreased numbers, persons of any protected class.
- (5) To misrepresent, steer, create or distort a circumstance, condition or incident for the purpose of fostering the impression or belief, on the part of any owner, occupant or prospective owner or occupant of any housing accommodation or commercial property, that such housing accommodation or commercial property is within any neighborhood, community or area

adjacent to any other area which would be adversely impacted by the residence, or future increased or decreased residence, of persons of any protected class.

- (6) To, in any way, misrepresent or otherwise misadvertise within a neighborhood or community, whether or not in writing, that any housing accommodation or commercial property within such neighborhood or community is available for inspection, sale, lease, sublease or other transfer, in any context where such misrepresentation or misadvertising would have the effect of fostering an impression or belief that there has been or will be an increase in real estate activity within such neighborhood or community due to the residence, or anticipated increased or decreased residence, of persons of any protected class.
- (7) For any person to harass, threaten, intimidate, harm, damage or otherwise penalize any person, group or business because he or they or it exercised or encouraged others to exercise their rights under this article, or because he or they or it has complied with the provisions of this article, or enjoyed the benefits of this article, or because he or they or it has made a charge, testified or assisted in any manner in any investigation, proceeding or hearing hereunder.
- (8) For any person to aid, abet, incite, induce, compel or coerce the commission of an unlawful practice prohibited by this article or to obstruct or prevent any person from complying with the provisions of this article or any order issued hereunder.
- (9) For any person who with intent to mislead in any proceeding under this article to destroy or mutilate, falsify, alter or refuse to supply records and documents produced pursuant to subpoena or other lawful order under this section.

B. Nothing in this section shall be construed to:

- (1) Prohibit a person engaged in the business of furnishing appraisals of real property from taking into consideration factors other than race, color, religious creed, ancestry, national origin, marital status, hairstyle, sex, gender identity or expression, sexual orientation, age, disability, use of a guide or support animal because of a physical disability or because the user is a handler or trainer of guide or support animals, or familial status.
- (2) Apply with respect to housing for older persons to the extent that such language pertains to age or familial status.
- (3) Prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons.
- (4) Prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.
- (5) Apply with respect to discrimination based on sex in the rental or leasing of housing accommodations in a single-sex dormitory.

§ 215-35. Unlawful public accommodations practices. [Amended 10-20-2020 by Ord. No. 24-20]

It shall be an unlawful public accommodation practice for any person being the owner, lessee, proprietor,

manager, superintendent, agent or employee of any place of public accommodation, resort or amusement because of race, color, religion, national origin, ancestry or place of birth, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, hairstyle, age or use of a guide or support animal because of blindness or the training of such animal, deafness or physical disability of any individual or independent contractor or because of the disability of an individual with whom the person is known to have an association to:

- A. Refuse, withhold from or deny to any person because of protected class, either directly or indirectly, any of the accommodations, advantages, facilities, services or privileges of such place of public accommodation, resort or amusement.
- B. Publish, circulate, issue, display, post or mail, either directly or indirectly, any written or printed communication notice or advertisement to the effect that any of the accommodations, advantages, facilities and privileges of any such place shall be refused, withheld or denied to any person on account of protected class objectionable or not acceptable, desired or solicited.
- C. Obstruct any person from enjoyment of his rights under this article relating to public accommodations.
- D. Construct, operate or otherwise make available such place of public accommodation, resort or amusement which is not accessible.

§ 215-36. Unlawful medical care practices. [Added 7-14-2020 by Ord. No. 17-20¹⁰]

- A. It shall be an unlawful medical care practice for any medical care provider to:
 - (1) Directly or indirectly refuse, withhold, or deny medical care as defined in this article to any person solely based upon such person's membership in one or more protected class(es); or
 - (2) Directly or indirectly provide less or different medical care than would be provided to another individual similarly situated, based solely upon a person's membership in one or more protected class(es); or
 - (3) Publish, circulate, issue, display, post or mail, either directly or indirectly, any written or printed communication notice or advertisement to the effect that any of the services, advantages, facilities and privileges offered by any medical care provider shall be refused, withheld or denied to any person solely based upon protected class, or identifying any protected class(es) as objectionable, ineligible for medical care, unacceptable, undesired or unsolicited; or
 - (4) Otherwise engage in any practice, action, or course of action meeting the definition of discrimination contained within this article, if such action is based solely upon a person's membership in one or more protected class(es).
- B. It shall further be a violation of this section for any individual, group, or other entity not defined as a medical care provider in this article to obstruct, limit, or otherwise interfere with any person's exercise or enjoyment of their rights under the terms of this section, if such obstruction, limitation or interference is based solely upon a person's membership in one or more protected class(es).

§ 215-37. Unlawful public education practices. [Added 10-20-2020 by Ord. No. 24-20¹¹]

10. Editor's Note: This ordinance also redesignated former §§ 315-36 through 315-38 as §§ 315-37 through 315-39

11. Editor's Note: This ordinance also redesignated former §§ 215-37 through 215-39 as §§ 215-38 through 215-40.

- A. It shall be an unlawful public education practice for any school board, school board member, superintendent, principal, teacher, student teacher, teacher's aide, nurse or other healthcare professional, security personnel, or any other agent or employee of any school district, school, or other entity or facility in which public education as defined in this article is conducted, in whole or in part based upon or because of race, color, religion, national origin, ancestry or place of birth, sex, gender identity or expression, sexual orientation, disability, marital status, familial status, hairstyle, age or use of a guide or support animal because of blindness or the training of such animal, deafness or physical disability of any individual or independent contractor or because of the disability of an individual with whom the person is known to have an association to:
- (1) Refuse, withhold from, or deny in whole or in part to any enrolled student, either directly or indirectly, any of the educational programs, advantages, facilities, services or privileges of such place of public education; or
 - (2) Publish, circulate, issue, display, post or mail, either directly or indirectly, any written or printed policy, communication, notice, or advertisement to the effect that any of the educational services, advantages, facilities, services or privileges of any such place of public education shall be refused, withheld, limited, or denied to any person based upon the factors delineated within this section; or
 - (3) Initiate or undertake any disciplinary action or impose any disciplinary sanction against any enrolled student; or
 - (4) Obstruct any enrolled student from enjoyment of his or her rights under this article relating to public education.
- B. This section shall not be construed to prohibit public education institutions from imposing nondiscriminatory dress codes, or from denying or restricting student participation in academic or extracurricular programs, advantages, facilities, services or privileges based upon the protection of student or employee safety or upon academic or disciplinary ineligibility.

§ 215-38. Human Relations Commission.

- A. Establishment of Commission.
- (1) There is hereby established the Human Relations Commission of the County of Allegheny composed of seven members. All members of the Commission shall be residents of the County at the time of appointment and throughout their service. In the event the requirements of the position and/or availability of volunteers cannot be found within the County, then the members need not be residents of the County but must be either a County taxpayer, maintain a business, be employed or go to school in the County.
 - (2) All members shall be 18 years or older and shall serve terms of four years each. All appointments shall be made by the Chief Executive with the approval of County Council, provided that any seat for which the Executive does not tender a nominee to Council within 30 days of the seat becoming vacant may be filled by any individual approved by a majority of the seated members of Council. All nominees for initial appointments shall be tendered to Council by the Executive within 30 days of the effective date of this article, and any seats for which a nominee is not provided within that time may be filled by any individual approved by a majority of the seated members of Council. Three of the initial appointments shall be for terms of two years, and the remaining four initial appointments shall be for terms of four years. All future appointments shall be for terms of four years.

- B. Powers and duties. The Commission is hereby vested with the authority to administer and enforce this article and shall be given the following powers and duties:
- (1) To meet and function at any place within the County;
 - (2) To adopt, promulgate, amend and rescind rules and regulations to effect the policies and provisions of this article and to make recommendations to agencies of the County and County Council to effect such policies, provided that any such rules or regulations or alterations thereto are approved by a majority of Council through enactment of an ordinance or resolution.
 - (3) To initiate, receive, investigate, refer for investigation and pass upon complaints charging unlawful discriminatory practices in violation of this article taking place within the County.
 - (4) To study the problems of discrimination and foster, through community effort or otherwise, good will among the groups and elements of the population of the County.
 - (5) To issue such publications and such results of investigations and research as, in its judgment, will tend to promote good will and minimize or eliminate discrimination.
 - (6) From time to time, but not less than once a year, to report to the Chief Executive or his designee, and the County Council describing in detail the investigations, proceedings, hearings and studies it has conducted and their outcome, the decisions it has rendered and the other work performed by it, and make recommendations for such further legislation concerning abuses and discrimination.
 - (7) To rely upon staff employed by the Allegheny County Law Department and Human Resources Department, to the extent necessary for the accomplishment of its powers and duties as delineated in this section, provided that such reliance does not otherwise harm the ability of either Department to fulfill its regular functions.
- C. The Department of Human Resources shall provide administrative support services to the Commission. The Commission shall function as an agency of the County.

§ 215-39. Procedure for filing, investigating and resolving complaints.

- A. Filing a complaint. Any person claiming to be aggrieved by an unlawful discriminatory practice may make, sign and file with the Commission a verified complaint in writing which shall state the name and address of the person or persons alleged to have committed the unlawful practice and the particulars thereof. The complaint shall also contain such other information as may be required by the Commission. The Commission, upon its own initiative, may in like manner sign and file a complaint. The Commission or the complainant shall have the power reasonably and fairly to amend any complaint, and the respondent shall have like power to amend his/her answer.
- B. Timeliness. Any complaint filed pursuant to this section must be so filed within 180 days after the alleged act of discrimination, unless otherwise required by the Fair Housing Act.
- C. Withdrawal. Any complaint may be withdrawn at any time by the party filing the complaint.
- D. Preliminary investigation. After the filing of any complaint, if the Commission determines that an investigation is warranted, the Commission shall refer the complaint to the Allegheny County Department of Human Resources, which shall conduct an investigation in order to determine whether a factual basis for the complaint exists. The procedure governing such investigation shall be modeled after the procedure described in § 5-1013.24 of the Administrative Code of Allegheny County,

governing investigation of ethics complaints. The Department of Human Resources shall not hold hearings, issue findings to parties, or be empowered to undertake any final action on any complaint forwarded to it for investigation by the Human Relations Commission. At the conclusion of the preliminary investigation, the Department of Human Resources shall forward a summary report to the Human Relations Commission. The Human Relations Commission may request that the Council initiate an investigation and/or issue subpoenas to any person charged with an unlawful practice to furnish information, records or other documents, and may seek enforcement of any subpoena issued under the terms of this section by petition to the Court of Common Pleas of Allegheny County.

- E. Allegation and notice. If it shall be determined after such investigation that there is no basis for the allegations of the complaint, the Human Relations Commission shall, within 10 days from such determination, cause to be issued and served upon the complainant written notice of such determination and dismissal of the complaint. The complainant may, within 10 days after such service, file with the Commission a request for a review. The Commission shall, upon request for such a review, provide the complainant an opportunity to appear before the Commission to present such additional information as may be available to support the allegations of the complaint. The Commission may reinstate the complaint within 10 days of the review upon a determination that the additional information presented warrants such reinstatement.
- F. Conciliation. If the Human Relations Commission, after investigation, determines that probable cause exists for the allegations of the complaint, the Commission shall immediately endeavor to eliminate the unlawful practice complained of by persuasion, conference and conciliation. The Commission and staff shall not disclose identities of the parties except as required by the Fair Housing Act.
- G. Hearing.
 - (1) If the Human Relations Commission, in its discretion, finds it is not possible to eliminate such unlawful practices by persuasion, the Commission shall cause to be issued and served a written notice, together with a copy of such complaint as the same may have been amended, requiring the party named in such complaint, hereinafter referred to as "respondent," to answer the charges of such complaint at a hearing before the Commission at a time and place to be specified in such notice. The Commission may appoint a hearing examiner or designate no fewer than three of its members to preside at such a meeting, or it may at its election conduct such hearing en banc.
 - (2) When notice of hearing is given as set forth in Subsection E and an election procedure is required by the Fair Housing Act, either party may elect, as an alternative to a public hearing before the Commission, to have the claims asserted in the complaint decided in a civil action brought under the original jurisdiction of Allegheny County Court of Common Pleas. The written notice of the Commission shall be sent to all parties and will inform them of their right to take civil action. An election must be made within 20 days after receipt of the notice of hearing. A party making this election shall notify the Commission and all other parties.
 - (a) If an election for civil action is made by either party, the Commission shall, within 30 days from the date of election, commence and maintain a civil action on behalf of the complainant.
 - (b) In any action brought under this subsection, if, after a trial, the Court of Common Pleas finds that a respondent engaged in or is engaging in any unlawful discriminatory practice as defined in this article, the Court may award attorney's fees and costs to the complainant on whose behalf the Commission commenced the action in addition to attorney's fees and costs incurred by the Commission.

- H. Conduct of hearing. The case in support of the complaint shall be presented to the Commission or before a hearing examiner designated by the Commission for the purpose of hearing said complaint by its attorney or agents, by the complainant, or by an agent or representative of the complainant. The respondent may appear at such hearing in person or otherwise, with or without counsel, and submit testimony. The complainant may likewise appear at such hearing in person or otherwise, with or without counsel, and submit testimony. The Commission or the complainant shall have the power reasonably and fairly to amend any complaint, and the respondent shall have like power to amend his answer. The Commission shall not be bound by the strict rules of evidence prevailing in courts of law or equity. The testimony taken at the hearing shall be under oath and be transcribed.
- I. Findings.
- (1) If, upon all the evidence at the hearing, the Commission shall find that a respondent has engaged in or is engaging in any unlawful discriminatory practice as defined in this article, the Commission shall state its findings of fact, and shall issue and cause to be served on such respondent an order requiring such respondent to cease and desist from such unlawful discriminatory practice and to take such affirmative action, including, but not limited to, reimbursement of certifiable travel expenses in matters involving the complaint, compensation for loss of work in matters involving the complaint, hiring, reinstatement or upgrading of employees, with or without back pay, admission or restoration to membership in any respondent labor organization, the making of reasonable accommodations, or selling or leasing specified housing accommodations or commercial property upon such equal terms and conditions and with such equal facilities, services and privileges or lending money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair or maintenance of housing accommodations or commercial property, upon such equal terms and conditions to any person discriminated against or all persons, any other verifiable, reasonable out-of-pocket expenses caused by unlawful discriminatory practice, or other compensation as provided under the Pennsylvania Human Relations Act.
 - (2) In those cases alleging a violation of § 215-33 or 215-34 and violations of the Fair Housing Act, the Commission may award actual damages, including damages, caused by humiliation and embarrassment, as, in the judgment of the Commission, will effectuate the purposes of this article, and including a requirement for report of the manner of compliance.
 - (a) Such order may also assess a civil penalty against the respondent in a complaint of discrimination filed under § 215-33 or 215-34 and violations of the Fair Housing Act:
 - [1] In an amount not exceeding \$10,000 if the respondent has not been adjudged to have committed any prior discriminatory practice;
 - [2] In an amount not exceeding \$25,000 if the respondent has been adjudged to have committed one other discriminatory practice during the five-year period ending on the date of this order; or
 - [3] In an amount not exceeding \$50,000 if the respondent has been adjudged to have committed more than one other discriminatory practice during the seven-year period ending on the date of this order.
 - (b) If, however, the acts constituting the discriminatory practice that is the object of the charge are committed by the same natural person who has been previously adjudged to have committed acts constituting a discriminatory practice, then the civil penalties set forth in Subsection I(2)(a)[2] and [3] may be imposed without regard to the period of time within

which any subsequent discriminatory practice occurred.

- (c) If, upon all the evidence at the hearing, in those cases alleging a violation of § 215-33 or 215-34, the Commission finds that a respondent has engaged in or is engaging in any unlawful discriminatory practice as defined in this article, the Commission may award attorney's fees and costs to prevailing complainants.
- J. Commonwealth license. When the respondent is a licensee of the Commonwealth of Pennsylvania, the Commission shall inform the appropriate state licensing authority of the order with the request that the licensing authority take such action as it deems appropriate against such licensee.
- K. Dismissal. If, upon all the evidence, the Commission shall find that a respondent has not engaged in any such unlawful discriminatory practice, the Commission shall state its findings of fact, and shall issue and cause to be served on the complainant an order dismissing the complaint as to such respondent.
- L. Hearing rules and records. The Commission shall establish rules of practice to govern, expedite and effectuate the foregoing procedure and its own actions thereunder. Three or more members of the Commission or a hearing examiner designated by the Commission shall constitute the Commission for any hearing required to be held by the Commission under this article. The recommended findings, conclusions and order made by said members or hearing examiner shall be reviewed and approved or reversed by the Commission before such order may be served upon the parties to the complaint. The recommended findings, conclusions and order made by said members or hearing examiner shall become a part of the permanent record of the proceeding and shall accompany any order served upon the parties to the complaint.

§ 215-40. Enforcement, judicial review and penalty.

- A. Injunction. If the Commission concludes, at any time following the filing of a complaint under this article, that prompt judicial action is necessary to prevent immediate and irreparable harm, the Commission may commence an action in Court of Common Pleas, and that Court may grant an appropriate preliminary or special injunction pending final disposition of the complaint. Any such order or relief shall be granted in accordance with Pennsylvania Rules of Civil Procedure Section 1531.
- B. Enforcement. The complainant or the Commission may secure enforcement of the order of the Commission or other appropriate relief. When the Commission has heard and decided any complaint brought before it, enforcement of its order shall be initiated by the filing of a petition in the Court of Common Pleas, together with a transcript of the record of the hearing before the Commission, and issuance and service of a copy of said petition as in proceedings in equity. The Commission's copy of the testimony shall be available at all reasonable times to all parties for examination without cost, and for the purpose of enforcement or judicial review of the order. Any failure to obey an order of the Court may be punishable by such Court as contempt thereof.
- C. Enforcement by private person.
 - (1) In cases involving a claim of discrimination, if a complainant invokes the procedures set forth in this article, that individual's right of action in the courts of the commonwealth shall not be foreclosed. If, within one year after the filing of a complaint with the Commission, the Commission dismisses the complaint or, for whatever reason, closes the complainant's case, or has not entered into a conciliation agreement to which the complainant is a party, the Commission must so notify the complainant. On receipt of such a notice the complainant shall

be able to bring an action in the Courts of Common Pleas of the Commonwealth based on the right to freedom from discrimination granted by this article.

- (2) An action under this subsection shall be filed within 100 consecutive calendar days after the date of notice from the Commission closing the complaint. Any complaint so filed shall be served on the Commission at the time the complaint is filed in court. The Commission shall notify the complainant of this requirement.
 - (3) If the Court finds that the respondent has engaged in or is engaging in an unlawful discriminatory practice charged in the complaint, the Court shall enjoin the respondent from engaging in such unlawful discriminatory practice and order affirmative action which may include, but is not limited to, reinstatement or hiring of employees, granting of back pay, or any other legal or equitable relief as the Court deems appropriate. Back pay liability shall not accrue from a date more than three years prior to the filing of a complaint charging violations of this article.
 - (4) The Court shall serve upon the Commission any final order issued in any action brought under this subsection.
 - (5) If, after a trial held pursuant to Subsection C, the Court of Common Pleas find that a defendant engaged in or is engaging in any unlawful discriminatory practice as defined in this article, the Court may award attorney's fees and costs, as provided under the Pennsylvania Human Relations Act, to the prevailing plaintiff.
- D. Penalties. Any person who shall willfully resist, prevent, impede or interfere with the Commission, its members, agents or agencies in the performance of duties pursuant to this article, or shall willfully violate an order of the Commission, shall be guilty of a summary criminal offense and, upon conviction thereof, shall be sentenced to pay a fine of not more than \$500, or to undergo imprisonment not exceeding 30 days, or both, in the discretion of the Court, but procedure for the review of an order shall not be deemed to be such willful conduct.
- E. Construction. The provisions of this article shall be construed liberally for the accomplishment of the purposes thereof.
- F. Timeliness. The time limits for filing under any complaint or other pleading under this article shall be subject to waiver, estoppel and equitable tolling.
- G. Except as otherwise provided, any order of the Commission may be reviewed under the provisions of the Act of December 2, 1968, P.L. 1133 (2 Pa.C.S.A. § 105 et seq.), known as the "Local Agency Law," as amended.
- H. Where a provision of this article is found to be in conflict with a provision of any other ordinance of the County, or any regulation issued under the authority of such ordinance, the provisions which establish the higher standard for the protection of health, safety and welfare shall prevail.